

Brijesh Singh v. State of Uttar Pradesh

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 24 March 2025 · 2025:AHC-LKO:16650-DB · Writ-C No. 2525 of 2025 · **Writ disposed; petitioner relegated to clause 6.5 or Consumer Forum.**

HEADNOTE

A challenge to a revised electricity bill is a billing dispute referable to para 6.5 of the Electricity Supply Code, 2005. If that remedy has already been availed, the consumer is to approach the concerned Consumer Forum. The writ was disposed with liberty to take that path; a maintainable para 6.5 application is to be considered and decided expeditiously.

FACTUAL SUMMARY

Brijesh Singh approached the Lucknow Bench of the Allahabad High Court challenging a revised electricity bill of Rs.1,87,014.39. Respondents were the State of Uttar Pradesh through the Principal Secretary, Department of Energy, and three others, including the distribution licensee (respondent Nos. 2 and 3), whose counsel was heard. The petitioner sought writ relief against that revised demand rather than first pursuing the Supply Code billing-objection route.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-forum

HOLDING

A challenge to a revised electricity bill is a billing dispute referable to para 6.5 of the Electricity Supply Code, 2005. Unless that remedy has already been availed, in which case the consumer is to go to the concerned Consumer Forum, a maintainable application under para 6.5 shall be considered and decided expeditiously. The writ court will not decide the bill on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE REVISED BILL OF RS.1,87,014.39

No merits determination; petitioner relegated to para 6.5 or the Consumer Forum.